

Line 5

Case Name: *Shan Allen Laliberte, et al. v. F.S. Trucking Company, et al.*

Case No.: 25CV472081

See ORDER above. (At the request of the moving party, this Motion is OFF CALENDAR.)

Line 6

Case Name: *Michael Ramos-Mauro, et al. v. General Motors LLC, et al.*

Case No.: 25CV462049

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiffs Michael Ramos-Mauro and Michael Alexander Ramos Us (“Plaintiffs”) move under Code of Civil Procedure Section 1794(d) and the accepted Release and Settlement Agreement signed on October 1, 2025 (“Settlement Agreement”) for Defendant General Motors LLC (“GM” or Defendant”) to pay Plaintiffs’ reasonable fees, costs, and expenses as the prevailing party in this case in the amount of \$15,957.94, which equals attorneys’ fees sought of \$15,130.00 plus costs sought of \$827.94. Notice of Motion (the “Motion”) at 1:24-2:13 (filed: Jan. 14, 2026).

The Motion came on for hearing on September 2, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background

On January 5, 2022, Plaintiffs purchased a new 2022 Chevrolet Silverado from Stevens Creek Chevrolet. The vehicle was covered by GM’s express warranty, including a three-year/36,000-mile basic warranty and a five-year/60,000-mile powertrain warranty.

Plaintiffs experienced defects and nonconformities with the vehicle, including transmission failure, failure of the vehicle to turn on, and illumination of the check engine warning light. These defects were reported to GM and authorized repair facilities, including Stevens Creek Chevrolet, for warranty repairs. Plaintiffs underwent approximately nine repair visits with a total of approximately 103 days of downtime.

Plaintiffs filed their Complaint in this court on March 26, 2025, against GM, Stevens Creek Chevrolet, and Does 1–50, bringing Song-Beverly Consumer Warranty Act claims against GM.

Defendants answered with a general denial on May 14, 2025.

The parties exchanged statutory initial disclosures and engaged in limited discovery. This case did not involve depositions, vehicle inspection, contested law-and-motion practice, expert discovery, or trial preparation.

Mediation occurred on September 5, 2025, during which GM made a settlement offer to repurchase Plaintiffs’ vehicle for \$27,500, and Plaintiffs accepted. A written